

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

USL AUTO EXPORTING INC., *Complainant*

v.

EASY SHIPPING CORPORATION, *Respondent*.

DOCKET NO. 23-13

Served: January 5, 2024

ORDER OF: Alex M. CHINTELLA, *Administrative Law Judge*.

ORDER DENYING MOTION TO COMPEL

On December 26, 2023, Complainant USL Auto Exporting Inc. filed a motion seeking an order to compel Respondent Easy Shipping Corporation to communicate with USL's designated email address. USL claimed that Easy Shipping had been sending email related to this case to an old email address. Easy Shipping did not file a response to the motion.

The email address designated in the motion, "ageneral.manager@uslautoexporting.com," is different than the email address listed in the signature line of the motion and in Mr. Houssein's notice of appearance, which is "general.manager@uslautoexporting.com." While the initial "a" in the designated email address may be a typographical error, it is repeated throughout the motion. It is therefore unclear what email address USL wants the parties to use.

In addition, USL's motion fails to comply with Commission Rule 71, which requires parties to attempt to discuss an anticipated non-dispositive motion prior to filing to determine whether there is any opposition to the relief sought and, if there is opposition, to narrow the areas of disagreement. 46 C.F.R. § 502.71(a). Confusion over the correct email address for service is exactly the type of issue that should be resolved through such discussion, rather than being the subject of motion practice.

Given the confusion and the lack of compliance with Rule 71, the motion is **DENIED**. Both parties must ensure that the contact information listed on their notices of appearance is correct and must update it when there is any change. See Commission Rule 21 and the Initial Order. Parties must serve each other at the address in the notice of appearance.

**ALEX
CHINTELLA**

Alex M. Chintella
Administrative Law Judge

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ALEX CHINTELLA
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